

Jan 6th

Steven Bradley Mell
P.O. Box 835
Far Hills, NJ 07931
Defendant & Third-Party Plaintiff
Pro Se

B.B.,	:	SUPERIOR COURT OF NEW JERSEY
	:	LAW DIVISION: ESSEX COUNTY
	:	
Plaintiff,	:	DOCKET NO. ESX-L-7200-19
vs.	:	
S. BRADLEY MELL; KIMBERLY	:	<u>Civil Action</u>
RUGGLES MELL; AERO CARE	:	
SERVICES, L.L.C.; CM, L.L.C.;	:	
KRM INVESTMENTS, L.L.C.;	:	
EMILY MELL; ELIZA MELL;	:	
W.M.; STEVEN	:	
BRADLEY MELL 2012 FAMILY	:	
TRUST; KIMBERLY RUGGLES	:	
MELL 2012 FAMILY TRUST;	:	
and MOUNTAINSIDE SECURITIES, LLC,	:	
	:	
Defendants.	:	
STEVEN BRADLEY MELL, ET AL.	:	
	:	
Third-Party Plaintiff,	:	
	:	
vs.	:	
	:	
D.D. and E.E.,	:	
	:	
Third-Party Defendants.	:	

**STEVEN BRADLEY MELL'S
STATEMENT OF UNDISPUTED MATERIAL FACTS
IN SUPPORT OF HIS MOTION FOR SUMMARY JUDGMENT**

Defendant & Third-Party Plaintiff Steven Bradley Mell ("Mell") respectfully submits the following Statement of Undisputed Material Facts in Support of His Motion for Summary Judgment in his favor and against Third-Party Defendants D.D. (Plaintiff's Mother) and E.E. (Plaintiff's Father):

- ✓ 1. Third-Party Plaintiff Steven Bradley Mell ("Mell") is one of several named Defendants in the primary action and a Third-Party Plaintiff in this action.
- ✓ 2. Third-Party Defendants Mother ("D.D.") and Father ("E.E.") (collectively "Parents") are the biological parents of the Plaintiff B.B.¹
- ✓ 3. At all relevant times, Parents resided in Whitehouse Station, New Jersey with Plaintiff and their other two daughters [*Father Dep. at 21:5-7, 24, 54:5-9, 61:13-23, 62:2-3; Mother Dep. at 30:5-9, 15-17*].
- ✓ 4. Prior to, and during, the events that form the bases of the instant cause, Mell and Parents' daughter C.C. began an illicit sexual relationship while she was in high school. [*Mother Dep. at 78:17-22; 86:1-14*].
- ✓ 5. It is indisputable that C.C. entered into and maintained the relationship with Mell of her own volition [*Mother Dep. at 78:17-22; 86:1-14*].
- ✓ 6. Mother admitted she had direct knowledge that C.C. had been involved in a relationship with Mell since at least February of 2016 and described that relationship as one that involved "at least kiss[ing]" and that the dynamic had become "inappropriate" [*Mother Dep. at 78:17-22; 86:1-14*].
- ✓ 7. Father confirmed that he became aware, through Mother, of the relationship between Mell and his older daughter, C.C., and that it was "sexual in nature" and involved "inappropriate things" such as kissing [*Father Dep. at 54:19-55:14; 61:12-23; 143:16-18*].

¹It should be noted that the approved pseudonyms have been used interchangeably and confusingly throughout the litigation. For the purposes of Mell's filings for Summary Judgment, the key to pseudonyms is as follows:

- (a) B.B. Sole Plaintiff in the main action and daughter of Mother and Father
- (b) C.C. Plaintiff's sister and daughter of Mother and Father
- (c) D.D. Mother of Plaintiff, C.C. and F.F. Mother is also directly named as a third-party defendant which is the focus of the instant summary judgment filings
- (d) E.E. Father of Plaintiff, C.C. and F.F. Mother is also directly named as a third-party defendant which is the focus of the instant summary judgment filings
- (e) F.F. Plaintiff's youngest sister and daughter of Mother and Father

- ✓ 8. Following Parents' initial discovery of C.C.'s relationship with Mell, the pair had decided to not contact the police or seek any other legal action or protection [*Mother Dep. at 89:1-3*].
- ✓ 9. Instead, Mother, with Father's knowledge and assent, agreed to meet with Mell in a "private room" at the exclusive Essex Hunt Club to discuss the relationship [*Mother Dep. at 80:24-81:6, 82:22-83:8, 88:1-4, 89:1-3; Father Dep. at 187:16-22*].
- ✓ 10. At the meeting, the Mother testified that Mell confessed to the relationship and apologized. She further claimed that she restricted C.C. from seeing Mell again, but the evidentiary record demonstrates otherwise. [*Mother Dep. at 84:16-19*].
- ✓ 11. Thus, Mother and Father had direct and irrefutable knowledge of Mell's history of engaging in a relationship with their older daughter when she was in high school as early as President's Day in 2016 [*Father Dep. at 54:19-55:14; 61:12-23; 143:16-18*].
- ✓ 12. Then, just one-and-a-half months later, in April of 2016, B.B. and F.F. (the youngest daughter), uncovered sexually explicit messages and photographs on C.C.'s cell phone directly involving Mell [*B.B. Dep., Vol. 2, at 44-46*].
- ✓ 13. Alarmed by the discovery of sexual misconduct involving their high-school aged sister, B.B. (then 14) and F.F. (then 11) immediately alerted Mother as to the existence of the explicit materials found on C.C.'s device and attempted to show her the evidence. [*BB Dep., Vol. 2, at 46; Mother Dep. at 78:12-15*].

- ✓ 14. But, consistent with her documented history of concealment, Mother exhibited a shocking lack of concern; she deliberately chose not to view the incriminating materials and admitted to immediately returning the phone to C.C., effectively burying the evidence of abuse [*Mother Dep. at 78:16-25; 79:1-6*].
- ✓ 15. Most disturbingly, about a month later in May of 2016, at the pre-prom party for C.C. and Mell's eldest daughter, B.B. explicitly alerted Mother that she believed Mell was "following [her] around" in a manner she characterized as "stalking" and "weird" [*BB Dep., Vol. 2, at 267:9-13; 268:13-15; 269:15-18*].
- ✓ 16. Dismissing both B.B.'s specific warning regarding Mell's alleged stalking behavior and their direct knowledge of his prior illicit sexual conduct with C.C., Parents continued to socialize with Mell at the party and beyond. [*SBM A3; SBM A23; SBM A25; SBM A26; Father Dep. at 43:17-25; 85:9-19; Mother Dep. at 120:19-25; 121:1-4; 149:20-23; 154:4-20*].
- ✓ 17. Thus, on at least three separate occasions within a span of approximately four months from early to mid-2016 (or about 1 year before the events brought in the instant suit), Mother and Father had direct knowledge of facts that would lead reasonable parents to fear that their daughters were in danger.
- ✓ 18. Yet, rather than distancing themselves from Mell, confronting him, contacting law enforcement, simply notifying his wife, or even prohibiting C.C. from socializing with Mell's children, the record irrefutably establishes that Parents' relationship with Mell rapidly morphed into a close friendship with extreme financial benefits [*SBM A3; SBM A23; SBM A25; SBM A26; Father Dep. at 43:17-25; 85:9-19; Mother Dep. at 120:19-25; 121:1-4; 149:20-23; 154:4-20*].

19. Parents treated Mell's private aviation access as a personal concierge service, utilizing his aircraft for, including but not limited to, the following excursions:

✓ (a) The Fall 2016 private transport of Father, B.B., and F.F. to Maine for C.C.'s college move-in [*Mother Dep. at 120:19-121:3*];

✓ (b) A subsequent Fall 2016 all-family private jet flight to Maine for "parents' weekend" at Colby College [*Mother Dep. at 124:14-16*];

✓ (c) A June 9, 2017 private excursion where Mell personally flew B.B. to Princeton to practice flying [*B.B. Dep., Vol. 2, at 78:15-24*];

✓ (d) A mid-June 2017 executive helicopter extraction where Mell personally flew Mother and C.C., with B.B., from New York City [*Mother Dep. at 149:20-150:4*]; and

✓ (e) Spring 2017 flight where Mother permitted Mell to allow B.B. and F.F. to sit alone with him in the cockpit of his private plane [*Mother Dep. at 132:15-133:2*].

✓ 20. The illicit sexual relationship that B.B. entered into of her own willing volition began, according to B.B., around mid-June of 2017. [*B.B. Dep. Vol. 1, Dated Sept. 21, 2021 at 31:15-32*].

✓ 21. Cementing a financial nexus to the illicit relationship, Mell transferred \$25,000 into Mother's personal Chase account on July 27, 2017—a payment processed immediately following B.B.'s first alleged intercourse encounter with Mell [*Mother Dep. at 194:11-23; B.B. Dep. at 64:13-65:11; SBM A24*].

✓ 22. Further evidencing the pattern of financial entwinement, Mell funded two separate brokerage accounts, one for Mother and one for C.C., with \$25,000 each.

- ✓ 23. Parents didn't only benefit financially, but they also exploited Mell's considerable social capital to advance their own status including relying on Mell to facilitate and partially sponsor their application for admission into the exclusive Essex Hunt Club [*Mother Dep. at 83:17-22; Father Dep. at 43:17-25*].
- ✓ 24. Furthermore, Parents routinely accepted high-value gratuities from Mell, including tickets to the Zac Brown Band at the PNC Arts Center and access to an owner's box-seats for a sold-out Garth Brooks concert [*BB Dep. at 57:18-58:17, 74:11-25*].
- ✓ 25. Mother also benefited professionally from the relationship, serving as the listing agent for Mell's Far Hills condominium—a role that ensured she received a split of the commission [*Mother Dep. at 141:20-142:7*].
- ✓ 26. Despite her prior discovery of Mell's sexual misconduct with her older daughter, and her contradictory claim that Mell injected himself into the family dynamic through persistence, Mother expressly permitted Mell to take her minor daughter B.B. to the Somerset County Airport to fund and facilitate her flying lessons [*Mother Dep. at 83:4-86:5, 153:13-154:9*].
- ✓ 27. Prior to the official police involvement, a text exchange on August 18, 2017, between mother and daughter exposes Mother's true priorities. Indeed, upon learning B.B. discussed the flying lessons and their source with her therapist, Mother did not express concern for her daughter's safety or potential exploitation.



28. She was only concerned with mandatory reporting requirements. This is corroborated by Dr. Robinson's medical records, which indicate Mother contacted the doctor on August 17, 2017, specifically expressing concern regarding "reporting" requirements rather than her daughter's well-being [*Robinson Medical Record, Progress Note dated 8/17/17*].



29. To be sure, she fixated entirely on the therapist's reaction to the financial arrangement—specifically that Mell was the payor of the flight lessons.

30. The exchange is reproduced below:

Mother: Did you tell dr this morning about your flying lessons?

B.B.: Yes

...

Mother: *You told him who was paying*

B.B.: No

B.B.: *Oh well actually I might have*

Mother: *That's what I'm talking about*

Mother: *He thought that was fine?*

B.B.: *Yah I think*

...

Mother: *I'm surprised*

B.B.: *Surprised about what*

B.B.: *I'm so confused*

Mother: *That he thought it was fine*

Mother: But whatever

Mother: Just thinking about it

(SBM A5 (emphasis added); see also SBM A35 (handwritten note from B.B.'s doctor (Robinson) stating that B.B. experiencing stress between C.C. and her because C.C. found out who is paying for flight lessons)).

31. The "official" discovery date of December 4, 2017, is also a fabrication.

32. Aside from the "scare" with Dr. Robinson, the relationship was actually discovered in October 2017 when B.B.'s school-friends, S.S. and K.M., found illicit text messages on B.B.'s phone *before November of 2017* (B.B. Dep., Vol 2 at 199:18).

- ✓ 33. Not only did her friends make this discovery but S.S. specifically told her mother, K.S., about what she found on B.B.'s phone; in turn, K.S. immediately informed B.B.'s Mother.
- ✓ 34. While B.B. explicitly lied to investigators (about the event of her friend's mother contacting B.B.'s Mother) on December 21, 2017, her later sworn testimony confirms that S.S. found the messages and that S.S.'s mother immediately contacted B.B.'s Mother, who in turn informed B.B. that her friends told. (*B.B. Dep., Vol 2 at 196-198*).
- ✓ 35. After waiting for more than a month to see some movement or official action and seeing absolutely none, on December 1, 2017, B.B.'s friend K.M., finally broke down and reported the illicit relationship to a trusted adult who took her mandatory reporting obligations quite seriously; her Art Teacher at Gill St. Bernards (*B.B. Dep., Vol 2 at 196-198*).
- ✓ 36. We are as of yet unaware why it took several days, but Gill St. Bernards administrators waited until December 4, 2017 to initiate contact with state investigators.
- ✓ 37. This proves, without any doubt whatsoever, both Mother and Father were acutely aware that their daughter B.B. was involved in an illicit relationship with the same man involved with their elder daughter *months prior* to police involvement and *actively concealed* this timeline from authorities [*SBM A29 at p. 4; B.B. Dep., Vol. 2 at 200:5-201:10*].
- ✓ 38. Following this initial discovery, Mother's behavior revealed her true priority: preserving the "asset" of Mell's patronage.
- ✓ 39. On or about November 19, 2017 — just weeks before police intervention — Mother sent a text message to B.B. that portrayed deep anxiety about Mell withdrawing from the family.

40. Explicitly framing the relationship as a collective benefit (“us”), the exchange reveals a mother more concerned with being discarded by the ^{Alleged} abuser than protecting her child. Confronting her daughter about the abuser’s motivations, the mother injected her own fear of abandonment into the narrative:

Mother: So nothing about how I think *he did this because he was ready to get rid of us...?*

B.B.: Um, mom, *you didn’t even say that to me.*

Mother: Yes, I did.

B.B.: *I had no idea you thought he was trying to get rid of us.* No you didn’t. What did you say about that?

[B.B. Dep., at 285:6-16; Ex. BB-3 (emphasis added)].

41. In fact, B.B. explicitly described the relationship to her mother as a personal “friendship” in a text message but that it had eventually become emotionally “taxing.” B.B. testified that she told her mother “the *friendship between him and I was causing me too many problems*” [B.B. Dep. at 128:25-129:1]. Yet, knowing her daughter was navigating a complex personal relationship with an older man, the mother’s concern remained fixed on the loss of his patronage. In texts to her mother, B.B. further evidenced this emotional attachment, lamenting that the separation “stink[s]” because “*he is nice and he is a good friend*” [Id. at 138:13-15 discussing Ex. “BB-10”]. Despite these admissions of a personal “friendship,” the mother focused not on the impropriety of the bond, but on the consequences of “him getting rid of us.” ^{3d4}

42. Even after the “official” police investigation commenced on December 4, 2017, the mother and daughter continued to mourn the loss of the “friend[ship]” rather than celebrate the end of the illicit and allegedly damaging relationship itself.

43. In a tremendously shocking exchange on December 15, 2017, the two shared a moment of longing for their lucrative friendship with Mell, with Mother confirming her own desire to return to the status quo:

B.B.: I just really wish this whole thing would go away and it could go back to old times

B.B.: *And I really wish I could see him before the investigation starts*

Mother: *Oh I know I do too*

Mother: [B.B.] you can't. Please don't even think about it

44. On December 4, 2017, administrators at Gill St. Bernard's School contacted Parents to report the discovery of illicit material on a cell phone linking B.B. to Mell, marking the immediate commencement of the criminal case. [B.B. Dep. 23:19-22].

45. Despite investigators' request to interview the family, Parents waited an incredible **17 days**—until December 21, 2017—to bring B.B. for a formal interview. [SBM A29 at p. 1; B.B. Dep. 23:19-22].

46. During the interim period before speaking to police, B.B. was instructed by Mother as early as December 7 to "not admit" to anything based on legal advice obtained by her parents. [B.B. Dep. 143:24-145:3].

47. Parents' postponement of police interview for that critical 17-day window, allowed them to retain counsel to issue financial demands to Mell and even instructed B.B. to destroy evidence material to a criminal investigation. [SBM A29; Mother Dep. 22:4-6; B.B. Dep. 143:24-145:3].

48. Following the discovery of the photographs on December 4, 2017, and prior to B.B.'s interview with law enforcement on December 21, 2017, Parents retained legal counsel to immediately open a channel of communication with Mell. *[SBM A30 at p. 7; p. 27].*
49. During this period, Parents utilized their counsel to demand a **financial settlement** from Mell to resolve the matter; subsequent communications quantified this demand at **\$10 million** to avoid further escalation. *[SBM A30 at p. 7; p. 31].*
50. Following the initial rejection of settlement terms, the parents retained new representation by December 14 to aggressively pursue criminal complaints, acknowledging in texts that prosecution would force Mell to "respond very quickly and more favorably." *[SBM A30 at p. 28].*
51. This verifiable sequence—prioritizing settlement negotiations for 17 days before submitting to the police—demonstrates that Parents' initial objective was financial leverage rather than the immediate protection of their daughter or cooperation with law enforcement. *[SBM A30 at p. 19; p. 27].*
52. During the critical window between the discovery of the photographs and the police interview, Mother explicitly instructed B.B. via text on December 6, 2017, to "**delete Snapchat,**" ensuring the removal of the platform used for the alleged communications. *[SBM A1; B.B. Dep. 145:17-22].*
53. Although B.B. testified the deletion was intended to stop contact, her mother's specific instruction to "**delete Snapchat**" rather than block the user creates significant pause because it effectively spoliated the digital record, as B.B. later admitted she "didn't have any physical proof" because on that platform, "the proof of everything disappears." *[B.B. Dep. 145:17-19; 302:13-16].*

54. Simultaneously, Mother enforced a strict code of silence, texting B.B. on the same day as they were notified a criminal investigation was underway, “Whatever you do, don’t discuss any details of your relationship with anyone,” and explicitly instructing her to “not admit” to anything based on legal counsel’s advice. [B.B. Dep. 144:2-25].
55. The foregoing statements are true and correct based on an exhaustive analysis of the record evidence accessible and available to S. Bradley Mell.

Defendant & Third-Party Plaintiff Pro Se

By: _____
S. Bradley Mell

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